

Sameer v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 30 August 2022 · Writ-C No. 22633 of 2022 · **Writ disposed; relegated to EE under clause 6.14; coercive steps stayed**

HEADNOTE

On a consumer's prayer to liquidate electricity arrears of about Rs 1.12 lakh in installments, the Division Bench disposed of the writ by relegating him to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005, directing an expeditious decision in accordance with law and restraining coercive recovery until that decision.

FACTUAL SUMMARY

Sameer, a consumer of Paschimanchal Vidyut Vitran Nigam Limited, approached the Allahabad High Court seeking leave to repay outstanding electricity dues of approximately Rs 1,12,209 in easy installments. He stated he was ready and willing to deposit the entire outstanding amount if given that facility. Counsel for the Nigam submitted that clause 6.14 of the Electricity Supply Code, 2005 empowers the Executive Engineer to fix installments. The Court directed the petitioner to approach the Executive Engineer by representation within two weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for outstanding dues

HOLDING

Where a consumer seeks to repay outstanding electricity dues in installments, clause 6.14 of the Supply Code, 2005 empowers the Executive Engineer to fix installments; the High Court will relegate the consumer to that officer for an expeditious decision in accordance with law and will restrain coercive measures until that decision is taken. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court accepted that clause 6.14 empowers the Executive Engineer to fix installments for outstanding electricity dues and relegated the consumer to that officer, with a direction for an expeditious decision in accordance with law and a bar on coercive recovery pending that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALLMENTS, AND ON WHAT TERMS

Left to the Executive Engineer under clause 6.14 to decide in accordance with law. ¶ 1